JAN SURAAJ OVERSEAS (JSO) CONSTITUTION AND BYLAWS

A Quick Reference Guide

Disclaimer:

This is an abridged version of the JSO constitution and bylaws document**.** It includes only selected key components and relevant highlights for ease of reference. This document is not exhaustive and should **not** be considered as a complete or authoritative version.

For full context, interpretation, or legal reliance, please refer to the original, unabridged document, which remains the sole authoritative source.

1. **Legal Status:**

Jan Suraaj Overseas (JSO) is a Non-for -Profit organization, registered under Canada Not-for-Profit Corporation Act with its principal office in Canada

2. **Name and Application:**

Name of the organization shall be "Jan Suraaj Overseas" (hereinafter referred to as JSO) and shall, with the assent of the Indian Jan Suraaj Party (hereinafter referred to as JSP), be the single recognized global entity outside India to represent:

- Persons of origin from Bihar State in India living outside India
- Friends and Supporters of Bihar's development residing outside India
- All matters of concern to JSO

3. **Mission and Objectives:**

The Jan Suraaj Overseas (JSO) shall operate in alignment with the objectives outlined in its Certificate of Incorporation. As an umbrella organization, JSO will serve as a platform for individuals of origin from Bihar and friends and supporters of Bihar, residing outside India. JSO will strive to:

a) Unite and mobilize the Bihari diaspora worldwide,
b) Promote initiatives, research, and innovations in the areas of social welfare, economic development, education, and human rights,
c) Facilitate cultural exchange and collaborations,
d) Advocate for the socio-economic development of Bihar while adhering to Canadian Non-Profit laws

JSO will not engage in any political campaign activities related to Canadian political environment and will operate strictly as a Not-for-Profit organization under Canada Not for Profit Corporation Act

4. **Membership:**

Membership fee -CAD 25.00 per year

The membership fee will be waived for the members joining JSO until December,2025.

Qualifications to become JSO Member:

- Any Person of a minimum age of 18 years who is of Bihar origin or friends and supporters of Bihar, residing outside India and shares the values, purpose and ideals of Jan Suraaj Overseas
- Has not been convicted under any criminal and felonry laws of any country and or has been pardoned for such convictions
- Submits membership application in the prescribed form and makes the required declaration therein.

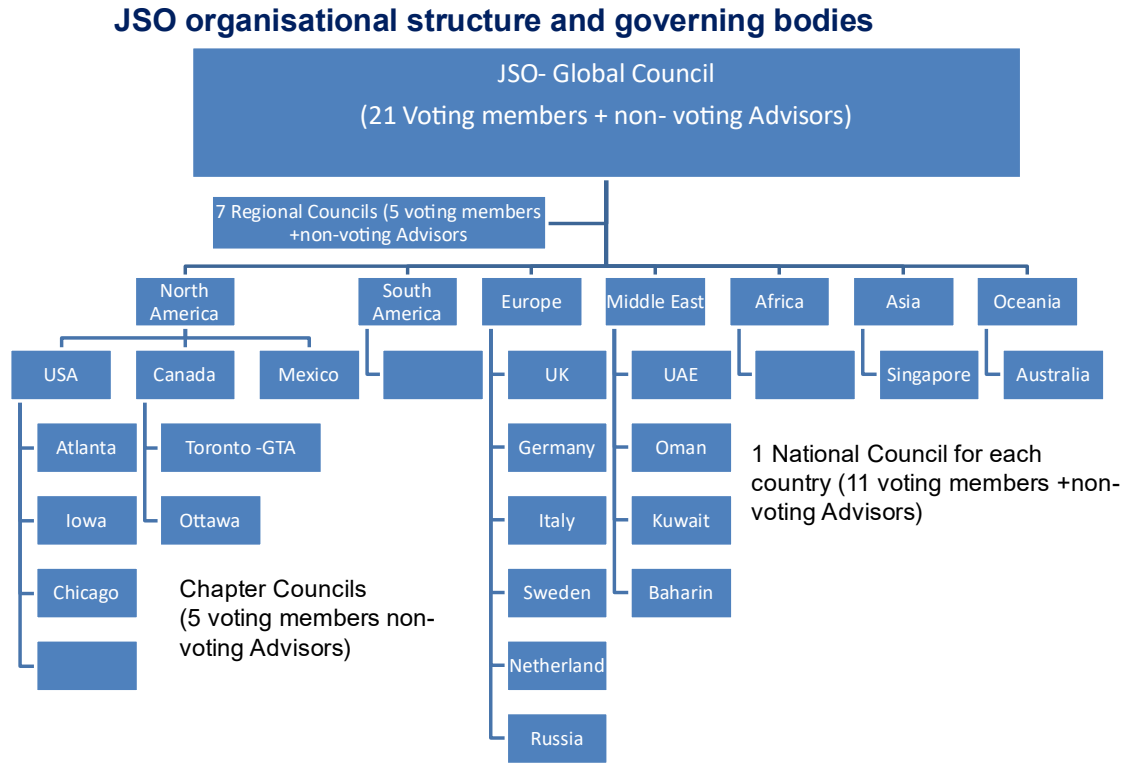
- All membership applications will be subject to approval by the Global Council on the recommendations by the Secretary (Membership and Outreach).
- By becoming a JSO member, such a person will automatically become a member of the respective JSO's Branch and Chapter where he resides. Each member will have one voting right to vote in the general body meetings at global, branch and chapter level.

Membership Revocation:

- Any member violating JSO's code of conduct may be removed by the GC based on the recommendation of the Disciplinary Committee. Such removal action will automatically remove such members from the respective region, branch and the chapter.
- An appeal process will be in place for the removed member.

5. **Organizational Unit:**

To manage its activities worldwide JSO has four-tiered organisation set up:



JSO members will automatically become eligible to vote for electing respective Global/Regional/National/Chapter council's members based on their country of residence.

6. Governing Structure:

At Global level-By a Global Council (GC)
At Regional level-By a Regional Council (RC)
At country level-By a National Council (NC) for each country where JSO branch is set up
At Chapter level-By a Chapter Council (CC)within a country where such Chapters are set up

7. Composition of Governing Councils:

Global Council (GC):

Global Council will constitute following members:

a) President
b) Vice President
c) General Secretary
d) Joint Secretary
e) Treasurer
f) Vice President-North America Region
g) Vice President-South America Region
h) Vice President-Europe Region
i) Vice President -Middle East Region
j) Vice President -Africa Region
k) Vice President -Asia-other than India)
l) Vice President-Oceania Region
m) Secretary (Public Relations, Media & Press)
n) Secretary (Membership and outreach)
o) Secretary (Legal matters, election and nomination)
p) Secretary (Fund Raising)
q) Secretary (Communications-Website, social media)
r) Secretary (IT) and Chief Technology Officer
s) Secretary (Liaison with local officials and other stakeholders)
t) Secretary (Events Management and Social Organization)
u) Secretary (Research, Innovations and Projects)
v) Chair of the each Standing and Ad-hoc Committees—Non- voting
w) Advisors—Non-voting

Each member of the GC shall serve the Council for a term of three (3) years and shall be eligible to serve in the same capacity for another one term of three (3) years in the same position. Any exception to this rule can be made by the General Body by 2/3 votes. In addition, GC may appoint Advisors from different fields of expertise. These advisors shall not have voting rights.

GC members will be elected by the JSO's general body members as per the election procedures described in ARTICLE-15.10

The GC may assign and/ or reassign responsibilities of its members and officials and modalities and make revisions, as necessary.

The GC shall meet at least once a month or as often as deemed necessary by the Council.
Each member of the Global Council except the Chairs of the Ad-hoc Committees will have one voting right to vote on the matters dealt with in the GC meetings.

The Global Council shall establish the following Standing Committees:

a) Executive Committee-President of the GC will chair this committee.
b) Finance Committee-Treasurer will chair this committee.
c) Governance Committee-Secretary (Legal matters) will chair this committee.
d) Disciplinary Committee -General Secretary will chair this committee.
e) Communication and coordination committee with JSPI-President will chair this committee.
f) Election and Nomination Committee-Secretary Election and Nomination will chair this committee.

The Executive Committee will consist of President, Vice-President, General Secretary, Joint Secretary and Treasurer. This Committee will deal with day-to-day activities of JSO and report to the Global Council on a monthly basis with relevant reports including financial statements.
The members of other standing committees will be nominated by the respective chairs with the approval of the GC. Such committee members must be from the JSO memberships.

Ad-Hoc Committees

The Global Council may from time to time, also establish Ad-hoc Committees as deemed appropriate to facilitate the conduct and interest of its business and establish rules and regulations for such Committees in respect of their composition, management, supervision and representation and the conduct of business in conformity with the goals and purposes of JSO. Each Committee shall be required to abide and function under the constitution and the bylaws and rules of JSO.

Each Ad-hoc Committee Chair shall be appointed by the Global Council who will serve as a non-voting member of the Global Council. The members of these committees will be selected by the Chairperson and approved by the Council.
The GC may, as an exception, permit a GC member to assume more than one role on a case-by-case basis if it is deemed to be in the interest of JSO. However, he may only cast one vote on any issue under discussion.

Officers of JSO:

For day-to-day operations including operations of bank accounts of JSO the following will be the designated officers of JSO:

- President
- Vice President
- General Secretary
- Jt. Secretary
- Treasurer

Meetings of Global Council:

a) All meetings of GC, standing and ad-hoc committees shall be held at the principal office of JSO or at such other place or remote using online meeting tools as may be designated by the President from time to time. All matters that require voting will be decided by a simple majority vote of the members present who have voting rights. In case of a tie the President's will cast his casting vote.
b) Global Council will meet at least once a month. In this meeting GC will review and approve the progress reports of the executive, standing and ad-hoc committees including JSO financial statements.
c) Any member of GC or the Committees who is absent from three (3) consecutive meetings without valid reasons or having been excused (such as for illness or a death in the family), would normally be so notified. Notices shall be sent to the absentee after being absent from 3 consecutive meetings and if the next two meetings are missed again after the giving of the notice, he may be removed from his position in the Council or the Committee after completing due process.
d) The General Body Meeting of the JSO members will be held once a year within six months of the expiry of the financial year. The Financial Year of JSO will be from Jan 1 to 31st of each calendar year.
e) Extraordinary General Body Meeting.

   Extraordinary General Body Meeting may be requested by the President or by one-third (1/3rd) of the General Body members in writing providing the reasons for holding such a meeting. Notices of such meetings shall be duly sent to the membership at large and such a meeting must be convened within 21 days of such request.

f) Special Meetings of the Global Council

Special meetings of the Global Council may be called by the President. Such meeting may also be requisitioned by at least 1/3rd of voting members of GC. Such requisition meetings shall, whenever possible, be held in Canada or outside Canada as the GC may determine or by electronic method within 21 days of such a request.

Regional Councils (RC):

Each of the seven Regional Councils will consist of the following members:

a) President
b) Vice President
c) General Secretary
d) Treasurer
e) Secretary (Branch Coordination)

The Presidents will represent the respective Regions on the Global Council

RC members will be elected by the JSO general body members residing in the countries of the respective regions as per the election procedures described in ARTICLE 15.10. Tenure of RC members will be for three years. Such members can hold the office by election for a maximum of two terms.

RC can appoint ad-hoc committees as needed.

National Councils (NC):

Each NC will consist of the following members:

a) President
b) Vice President
c) General Secretary
d) Treasurer
e) Secretary (Public Relations Media & Press)
f) Secretary (Membership and outreach)
g) Secretary (Legal matters, election and nomination)
h) Secretary (Chapter Committee Coordination)
i) Secretary (Communications-Website, social media)
j) Secretary (Liaison with Local elected officials and other stakeholders)
k) Secretary (Events Management)
l) Chair of the each Standing and Ad-hoc Committees—nonvoting members

With the approval of the Global Council the number of NC members can be more or less or flexible in terms of roles/titles depending upon the size of membership in a particular country. However, the total number of NC members will always be an odd number.

NC members will be elected by the JSO's general body members residing in the country of the respective branches (Country) as per the election procedures described in the ARTICLE-15.10. The tenure of NC members will be for three years. Such members can hold the office by election for a maximum of two terms in the same position.

Standing committees of NC

a) Executive committee-will consist of President, General Secretary, Vice President, and the Treasurer. This committee will handle the day-to-day activities and report to the NC on a monthly basis. The members of this committee will also be the designated officers of the Branch.
b) Finance Committee-Treasurer of NC will chair this committee.
c) Governance Committee
d) Communication and coordination committee for coordination with chapters and regions

NC can also appoint ad-hoc committees, as needed, from time to time

Chapter Councils (CC):

Each Chapter within a Branch (country) will be governed by a Chapter Council that will consist of the following CC members:

a) President
b) Secretary
c) Vice President
d) Member (Public Relations Media & Press)
e) Member (Membership and outreach)
f) Member (Coordination with branch and NC)
g) Member (Event Management)

With the approval of the respective National Council the number of CC members can be more or less flexible in terms of roles/titles depending upon the size of membership in a particular Chapter. However, the total number of CC will always be an odd number.

CC members will be elected by the JSO general body members residing in the geographical area of the respective chapters under a particular branch(country) as per election procedures described in the ARTICLE-15. The tenure of CC members will be for three years. Such members can hold the office by election for a maximum of two terms in the same position.

CC can also appoint ad-hoc committees as needed, from time to time.

8. Byelaws

Notice of Meetings

The procedure to be followed is as below unless the Articles of Incorporation, the Global Council, the Bylaws herein or the federal and Provincial laws require otherwise.

a) Annual General Meeting or Extra Ordinary General Body Meeting or special members' meeting – Notice shall be sent by regular post, by e-mail, or by facsimile machine at least three weeks in advance and not more than 30 days before the scheduled date of such meeting. Annual General Meeting must be held not later than fifteen months after holding the preceding annual general meeting and no later than six months after the end of the JSO's preceding fiscal year.
At the annual general body meeting the following business will be considered:
   - Minutes of the meeting of last annual general meeting
   - Report by the President on behalf of the Global Council
   - Presentation of audited Financial Statements
   - Appointment of Auditor
   - Presentation of Election and Nomination Committee
   - Election of GC members and standing committees
   - Any other business, as required

b) Meetings of the Global Council/Regional Council/National Council/Chapter Council –At least a seven-day notice shall be sent by regular post, by e-mail, or by facsimile machine. In the case of facsimile notification, the respective Council member contacted shall acknowledge personal receipt of the notice by a return message or telephone call within twenty- four hours of the first facsimile transmission.

Waiver of Notice - Whenever any notice of a meeting is required to be given to any GB/GC/RC/NC/CC Members, a waiver of notice by majority votes shall be adopted by the members present, whether before or before start of the meeting which will be considered as giving of such due notice.

Quorum and Chair of the Meetings

For GC/RC/NC/CC meetings-a quorum of 50% +1, of the voting members (physically or electronically)

For General Body meeting/Extra ordinary/Special meetings of the members-50% plus one of voting members (physically or electronically)

For Committee meetings-a quorum of 50%+1 of total number of committee members (physically or electronically)

Chair of the Meeting

The Chairs of these meetings shall not conduct any business at any meeting at which the required quorum is not present. The only motion, which the Chair shall entertain, is a motion to adjourn. A quorum, once established, will not be considered as broken by any member leaving in the middle of a meeting.

If a meeting was adjourned without a quorum, two weeks' notice should be given for a second meeting that would waive the quorum restriction to make decisions other than election or removal of members of the general body, GC/NC/CC or the committees.

Majority Action:

Every act or decision taken by a simple majority vote of the Members present at a duly held meeting at which a quorum is present shall be the valid act, unless the Articles of Incorporation, or the Bylaws herein or the applicable laws of Canada require otherwise. However, simple majority rule shall not apply in those instances where a two third majority is required in the bylaws herein, in accordance with the JSO rules, or the applicable laws of Canada. In case of an equality of votes, the chair of the meeting, in addition to an original vote, shall have a second or casting vote.

Conduct of the Meetings

All meetings of the GC and the members' meetings shall be chaired by the President or by the Sr. Vice President in the absence of President or by the Vice President in the absence of Sr. Vice President. In the event that all three are absent, the members who are present and entitled to vote shall choose a voting Member to chair the meeting.

The General Secretary shall act as the Secretary of all meetings of the GC, provided that, in his absence, or the absence of the designated appointee, the presiding officer shall appoint another person to act as the Secretary of the Meeting. Procedures for the conduct of meetings may be amended or revised from time to time by a resolution by the GC. In the event of any conflict of procedures in the conduct of all meetings, the parliamentary procedural rules established in Robert's Rules of Order shall always prevail. The General Secretary shall be responsible for the recording of the minutes and circulation thereof.

Proxy Voting

Proxy voting is not permitted in any meetings of JSO.

Nomination and Election of GC Members

Subject to this section and all other provisions in these bylaws, nominations for election of GC Members at the annual general meeting or at any Special Meeting held for the purpose of electing GC members, may be made only in accordance with the following process:

Candidates for GC shall be the slate of candidates that will be proposed by the Election and Nominating Committee. This Committee shall request written applications for vacant positions on the GC at least forty (40) business days in advance of the annual general meeting or such special meeting held for the purpose of electing the vacant positions. Such applications must be submitted at least ten (10) business days in advance of the annual general meeting or such a special meeting held for the purpose of electing GC members accompanied by a written declaration signed by the applicant that he or she (i) meets the qualifications to be a GC member and (ii) will serve in accordance with the constitution and bylaws if elected.

This Committee shall, throughout the year, identify, including through consultation with the executive committee and external advisors, potential candidates for GC positions, and determine the willingness of such candidates to serve.

This Committee shall strive to ensure that the membership of the GC reflects the depth, breadth and diversity of the communities served. The membership of the GC shall reflect a wider range of interests, skills, experience and particularly those most required, as determined by the GC from time to time.

Where the number of candidates nominated is equal to the number of GC positions to be filled, the slate will be determined by acclamation.

Where the number of candidates nominated is greater than the number of positions to be filled, the election shall be by secret ballot/voting. In the event of a tied vote, a second ballot shall be taken for the position. If the result is still a tie, a tie-breaking vote will be cast by the Chair of the Annual General Body or special meeting.

Voting Process:

- Voting for the election can be online or in person or a combination of both. Members will be offered both options.
- All voting will be secret.
- Online voting will be arranged using a secured voting software
- Candidates will be elected based on the maximum votes secured.
- Any election related disputes will be lodged with the Election and Nomination Committee whose decision will be final and binding on the parties concerned.

Vacancies

Vacancies on the Global Council shall exist:

- On the death, resignation, termed-out
- Whenever the number of authorized GC in the bylaws is properly increased
- When an existing GC member is removed under the provisions of these bylaws

Any GC Member may resign effective upon giving written notice to the President unless the notice specifies a later time for the effectiveness of such resignation. No GC member may resign if JSO would then be left without a duly constituted member in charge of its affairs.

The GC can appoint by a majority vote any eligible JSO member as a replacement for the period up to the next annual general meeting wherein such vacant position will be up for election for the remaining period of such vacancy.

The aforesaid rules shall also apply to the Regional/National and Chapter Councils unless the constitution and/or bylaws of the particular branch (country) otherwise provides.

Removal of a GC Member

The GC, based on the recommendation of its Disciplinary Committee may pass a resolution, recommending the removal of any GC member as a consequence of circumstances that the GC shall from time to time prescribe in its Policy Manual.

This rule will also apply to Regional/National and Chapter Councils also unless the constitution and/or bylaws of the particular branch (country) otherwise provides.

Disciplinary Committee

GC will develop and formulate disciplinary procedures against any member of the GC, NC, CC, officer, staff or general body member as may be deemed appropriate. Any aggrieved party may appeal the decision of the Disciplinary Committee to the Global Council in accordance with the established rules. The determination of the Global Council shall be final. A member of GC, RC, CC and general body may have his membership terminated for cause by a two-third majority vote of GC based on the recommendation of the Disciplinary Committee.

All rights of a member in JSO shall cease on termination of membership as herein provided.

Amendments in Bylaws

Except as may otherwise be specified under provisions of law, the Bylaws herein or the Articles of Incorporation or any of them, may be altered, amended or repealed and new Bylaws adopted by resolution approved by the Global Council by a two-thirds majority of votes. Notice by one hundred duly paid members shall trigger an action for amendment. However, the proposed amendment shall be sent to all members 6 weeks before the annual general body meeting of the JSO.

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